

Court No. - 21

Case :- WRIT - C No. - 37313 of 2022

Petitioner :- Sushil Kumar Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kalpna Upadhyay,P.K. Upadhyay

Counsel for Respondent :- C.S.C.,Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The submission is that recovery is being made without any final assessment order being in existence.

Learned counsel for the respondent-Electricity Department seeks time to obtain instruction.

List as fresh on 18th January, 2023.

Till then, recovery proceedings will remain in abeyance.

Order Date :- 11.1.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Counsel for Respondent :- C.S.C.,Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri S.K. Pandey, learned counsel for the respondent-Corporation has placed for our perusal the provisional and final assessment orders. However, he is not in a position to show how the aforesaid orders were served on the petitioner. He prays that the matter be taken up at 2 p.m.

Put up at 2 p.m.

Order Date :- 18.1.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Put up tomorrow i.e. on 19.01.2023.

Order Date :- 18.1.2023

Sumit Kumar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

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Counsel for Petitioner :- Kalpna Upadhyay, P.K. Upadhyay

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

In the instant matter, as per instructions received by learned counsel appearing on behalf of Electricity Department, the notice of provisional assessment was sent to the petitioner on 3.12.2019 by Abhi Express Couriers.

Learned counsel for the petitioner submits that normally the notices are sent by the Department by registered post and not by private courier. He expresses doubt about the authenticity of the receipt issued by the private courier company.

Under Section 27 of the General Clauses Act, 1897, the service is required to be effected by registered post.

Learned counsel for the respondents states that ordinarily the provisional assessment orders are sent by registered post.

We direct the Managing Director, P.V.V.N.L. to hold enquiry and report to the Court on the following aspects:

(a) Whether service by private courier is permissible according to the guidelines of the Department.

(b) Whether provisional assessment order allegedly sent by private courier was ever delivered to the petitioner and if so, on what date and by what mode.

In case he finds any departure from the normal procedure, he will take suitable action against the person responsible for the lapse.

Put up as fresh on 27.01.2023.

Sri S.K. Pandey, learned counsel appearing on behalf of the respondents will communicate the instant order to the Managing Director, P.V.V.N.L. for due compliance.

Interim order is extended till the next date of listing.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 19.1.2023/SL

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Counsel for Petitioner :- Kalpna Upadhyay,P.K. Upadhyay

Counsel for Respondent :- C.S.C.,Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri S.K. Pandey, learned counsel for the respondent Corporation seeks further time to file affidavit of Managing Director, P.V.V.N.L. in compliance of order dated 19.1.2023.

List as fresh on 2.02.2023.

Interim order is extended till the next date of listing.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 27.1.2023

SL

Court No. - 21

Case :- WRIT - C No. - 37313 of 2022

Petitioner :- Sushil Kumar Pandey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kalpna Upadhyay, P.K. Upadhyay

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

CM Amendment Application No. 2/2023

Counsel for the petitioner does not press the amendment application with liberty to file independent writ petition, or seek relief by other mode as may be advised.

Accordingly, the amendment application is rejected as not pressed.

Order on the main petition

In compliance of our previous order, Sri Shambhu Kumar, presently holding post of Managing Director, Purvanchal Vidyut Vitaran Nigam Limited, has filed his affidavit in which it is stated that although the order of final assessment was duly served on the petitioner by courier, but as the petitioner is denying service of the same, therefore the Department has decided to afford him fresh opportunity of hearing and thereafter pass a fresh order.

It is noteworthy that the petitioner has challenged the recovery citation dated 30.8.2022 and order dated 9.7.2022 in relation to assessment of electricity charges in a case of theft of electricity.

As in respect of the above prayer, the respondents have decided to afford fresh opportunity of hearing to the petitioner, therefore we provide that the petitioner shall file objection, if any, within fifteen days from today and thereafter, respondent no. 4 will proceed in the matter in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

The second prayer made in the writ petition is for a mandamus directing respondent no. 4 to decide the objection dated 17.8.2022 filed by the petitioner in response to another order of provisional assessment. It is admitted to learned counsel for the petitioner that during pendency of the proceedings, an order of final assessment has been passed. In respect of the said relief, the petitioner prays for withdrawal of the writ petition with liberty to him to challenge the order of final assessment in independent proceedings.

It is permitted accordingly.

The writ petition stands disposed of.

(Vikram D. Chauhan J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.2.2023

Jaideep/-